



## Notification Waiver Determination

### HB Land and Satterley – Elimbah Land Joint Venture

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| <b>Acquisition</b>           | <p>Elimbah Land Pty Ltd (<b>HB Land</b>) has entered into put and call options for the purchase of four contiguous parcels of land at Elimbah, Queensland, being 181 hectares in area, for the purpose of residential development (the <b>Property</b> and <b>Option Agreements</b>).</p> <p>HB Land and Satterley Elimbah Pty Ltd (<b>Satterley</b>) proposes to establish a joint venture entity, Elimbah Land JV Pty Ltd (<b>ELJV</b>), to develop the Property and will subscribe for shares in ELJV on a 50/50 basis (the <b>Acquisition</b>).</p> <p>HB Land applied for a notification waiver in respect of the Acquisition.</p> |
| <b>Determination</b>         | <p>The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.</p>                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>Date of determination</b> | <p>30 July 2026</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

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| <b>Parties to the Acquisition</b>    | <p>HB Land is a wholly owned subsidiary of HB Land Pty Ltd, which is ultimately owned by Ho Bee Land Limited, listed on the Singapore Exchange. In Australia, the HB group is engaged in the development and sale of residential land in Queensland, Victoria and New South Wales.</p> <p>Satterley is a special purpose investment vehicle, which has been incorporated solely for the purpose of the proposed transaction.</p> <p>The target, ELJV, is a joint venture entity established between HB Land and Satterley. HB Land would exercise the options under the Option Agreements in favour of ELJV as nominee, with the intention that ELJV would develop the Property for, principally, residential premises, with the remainder being developed for commercial or industrial purposes.</p> |
| <b>Explanation for determination</b> | <p>In making this notification waiver determination, the Australian Competition and Consumer Commission (the <b>ACCC</b>) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the <b>Act</b>).</p> <p>Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular:</p> <ol style="list-style-type: none"><li>the parties do not currently supply residential land in South East Queensland</li></ol>                                                                                                                                      |

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|  | <p>b. there are alternative suppliers of residential land across South East Queensland and in the local area surrounding Elimbah</p> <p>c. the Acquisition does not appear likely to otherwise limit or prevent competition from rivals.</p> <p>In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.</p> <p>Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified.</p> <p>The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.</p> <p>For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's <a href="#">interim guidance on notification waivers</a> and <a href="#">merger assessment guidelines</a>.</p> |
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)  
of the Act**